



Notification Waiver Determination

Star Hotels Group – Shafston Hotel QLD

Acquisition	MH South Brisbane Pty Ltd and SCHF Pty Ltd (together, Star Hotels Group) applied for a notification waiver in respect of its proposed acquisition of 100% of the business assets and freehold of Shafston Hotel, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	2 June 2026

Parties to the Acquisition	The acquirer, Star Hotels Group, is an independently owned and operated pub and liquor retail group, primarily operating pubs and hotels on the eastern seaboard of Queensland and in South Australia. Star Hotels Group operates various liquor retailers in the local area surrounding the target, as well as 3 hospitality venues: • Hotel West End, which offers on-premises liquor, dining, gaming, and a retail liquor store • Hotel Kingsley, which offers on-premises liquor, dining, and accommodation, and • The Garage Fortitude Valley, which offers on-premises liquor, dining, gaming, and a retail liquor store. The target, Shafston Hotel, is a hospitality venue in East Brisbane offering food, liquor, and gaming, as well as a drive-through retail liquor store. Following the Acquisition, Shafston Hotel will be integrated into Star Hotels Group's portfolio.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and certain publicly available information, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. the parties' combined shares of the supply of on-premises liquor, dining, and gaming, as well as the retail supply of packaged liquor, within the local area surrounding Shafston Hotel are estimated to be low

	b. there are alternative suppliers of retail liquor and on-premises liquor, dining, and gaming in the local area and the broader Brisbane area. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act